

BEFORE THE FEDERAL MARITIME COMMISSION

SAMSUNG ELECTRONICS AMERICA, INC.	)	
	)	
Complainant,	)	
	)	
v.	)	Docket No. 23-01
	)	
SM LINE CORPORATION	)	
	)	
Respondent.	)	
	)	

**COMPLAINANT SAMSUNG ELECTRONICS AMERICA, INC.’S
MOTION FOR STATUS CONFERENCE ON SM LINE CORPORATION’S
MOTION FOR LEAVE TO FILE THIRD PARTY COMPLAINT**

Complainant Samsung Electronics America Inc. (“SEA” or “Complainant”) respectfully requests a status conference with the Presiding Officer at its earliest opportunity to resolve issues relating to Respondent SM Line Corporation’s (“SM Line” or “Respondent”) motion for leave to file a third-party complaint (“Motion”) filed at 9:49 p.m. ET on Sunday, October 10, 2023.

A status conference is sought as Respondent’s Motion does not comply with the Federal Maritime Commission’s (“FMC”) rules of practice and procedure in that: (1) Respondent does not allege a violation of the Shipping Act of 1984, 46 U.S.C. § 40101, *et seq.* (“Shipping Act”) (nor did Respondent submit a proposed third-party complaint with the Motion); and (2) Respondent did not comply with the meet and confer requirements as required by FMC regulations. SEA can and would be prepared to file an opposition brief by the non-dispositive motion deadline of October 16, 2023 (including addressing the factors pertaining to leave to file a third-party complaint, such as undue delay, disadvantage, and prejudice to Complainant). But

without a proposed third-party complaint to evaluate the claims in detail, including, but not limited to, the lack of any alleged Shipping Act violations by the purported third-party respondents and the lack of any other jurisdictional allegations, the Complainant's ability to meaningfully evaluate and respond to Respondent's Motion is significantly truncated. And the Presiding Officer's ability to evaluate the motion is likewise limited.

SEA respectfully requests that the Presiding Officer schedule a status conference to resolve the deficiencies raised in Respondent's Motion as soon as practicable this week.

Dated: October 12, 2023

Respectfully Submitted,

HOLLAND & KNIGHT LLP

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document on counsel at the following email addresses:

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Executed: October 12, 2023

/s/ Kristine O. Little
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